

# HOUSE . . . . . No. 3691

---

## The Commonwealth of Massachusetts

---

PRESENTED BY:

*Steven S. Howitt*

---

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to roadways and road markings.

---

PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:  | DATE ADDED:      |
|-------------------------|--------------------|------------------|
| <i>Steven S. Howitt</i> | <i>4th Bristol</i> | <i>1/14/2025</i> |

# HOUSE . . . . . No. 3691

---

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 3691) of Steven S. Howitt relative to roadways and road markings. Transportation.

---

[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 3349 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to roadways and road markings.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 84 of the General Laws, as appearing in the 2022 Official Edition, is hereby  
2 amended by inserting the following new section:-

3           Section 28. Public utilities and private contractors shall be required to patch and seal  
4 roadways within 30 days after breaking ground, weather permitting, and shall be required to  
5 redraw any road markings disturbed including but not limited to crosswalks, bike lanes, and  
6 passing lanes, within 30 days of said lines being disturbed, weather permitting. If these  
7 requirements are not met, the local town or city public works commissioner shall order notice  
8 thereof to be given to the delinquent utility or private entity, who shall be assessed a penalty of  
9 \$100 for the first month of noncompliance after the initial 30 days has elapsed, and a penalty of  
10 no less than \$100 for each week thereafter until the work is completed.